

2:00 PM

LINE 10

26-CIV-00592

RIGOBERTO SOTELO, ET AL. VS. MIKE ZEPEDA, ET AL.

RIGOBERTO SOTELO
MIKE ZEPEDA

RAMON BALDONADO
MICHAEL D. LIBERTY

DEFENDANTS' MOTION FOR RELIEF FROM DEFAULT

TENTATIVE RULING:

The motion for relief from the default entered on April 15, 2026, as to defendant MJ Classics LLC d/b/a 805 Impala, is GRANTED. The declaration of Joanna Dominguez-Zepeda, manager and member of MJ Classics, offers evidence to establish that the default was entered as a result of mistake or her excusable neglect. Zepeda attempted to file the answer on three occasions, but the filings were rejected by the clerk of the court because of mistakes in the format of the pleadings. However, these type of mistakes are easily curable and should not result in default. The policy of the court is to allow such mistakes to be corrected. (See *Walton v. Victor Valley Community College Dist.* (2026) 119 Cal.App.5th 1164, 1167, as modified on denial of reh'g (Apr. 14, 2026), review filed (May 26, 2026) [court should not have granted summary judgment based on unsigned declaration when the technical oversight is a curable defect]; *Mito v. Temple Recycling Center Corp.* (2010) 187 Cal.App.4th 276, 280 [requiring trial court to treat complaint as filed even in the absence of a civil case cover sheet]). The fact that an entity is unable to represent itself may be a reason for the opposing party to move to strike the answer, it is not the role of the clerk to reject a filing on that basis.

Defendant shall file the proposed answer, attached as Exhibit A to the declaration of Michael Liberty, no later than July 7, 2026.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for defendants shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 11

26-CIV-00808

TREMIN CORPORATION VS. MICHAEL HARBOUR, ET AL.

TREMIN CORPORATION
MICHAEL HARBOUR

PATRICK J. WHITEHORN
CHARLES S. BRONITSKY

MOTION TO REMOVE MECHANIC'S LIEN

TENTATIVE RULING:

On the Motion to Remove Mechanic's Lien by Defendants and Cross-Complainants Michael Harbour and Andres Mediavilla ("Defendants"), the Court continues the motion to July 21, 2026 at 2:00 p.m. in Department 4 to allow for further briefing on the issue of the illegality of the contract. Simultaneous briefing of no more than ten (10) pages for the memorandum of points and authorities shall be filed and served by July 13, 2026.

Plaintiff Tremin Corporation dba Bay West Builders ("Plaintiff"), a contractor, brings this action seeking payment for work performed on a home improvement contract for real property owned by Defendants. The Complaint alleges that the parties entered into an oral agreement for this work on or about December 9, 2021. (Complaint, ¶ 9.) On November 5, 2025, Plaintiff recorded a Notice and Claim of Mechanics' Lien against the property. (Complaint, Exh. B.) The Complaint includes a cause of action to foreclose on the mechanic's lien. Defendants bring this Motion seeking to remove the mechanic's lien.

As a threshold matter, Defendants fail to cite any legal authority for bringing this Motion or the legal standard that applies to this Motion. (See Cal. Rules of Court, rule 3.1113(b) [memorandum must contain a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases and textbooks cited in support of the position advanced]; *id.*, rule 3.1110(a) ["A notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order].) The Court does not need further briefing on this issue, but in the future counsel should provide the legal authority for the motion.

"A motion to remove a mechanic's lien is recognized as a device that allows the property owner to obtain speedy relief from an unjustified lien or a lien of an unjustified amount without waiting for trial on the action to foreclose the lien. (*Howard S. Wright Construction Co. v. Superior Court* (2003) 106 Cal.App.4th 314, 318 (*Howard S. Wright*), citing *Lambert v. Superior Court* (1991) 228 Cal.App.3d 383.) The inquiry on a motion to remove a mechanic's lien is limited to the probable validity of the lien. (*Id.*, citing *Lambert, supra* at p. 387.) The determination is not the ultimate merit of the contractor's claim, but whether the contractor should be entitled to retain the security of the mechanic's lien pending resolution of the matter. (*Cal. Sierra Construction, Inc. v. Comerica Bank* (2012) 206 Cal.App.4th 841, 850.) The granting of a motion to remove a mechanic's lien is essentially a judgment on the underlying foreclosure action that no lien exists
